



Republic of the Philippines
NATIONAL PRIVACY COMMISSION

**IN RE: WEFUND LENDING
CORPORATION (JUANHAND)
AND ITS RESPONSIBLE OFFICERS**

NPC SS 21-006

INITIATED AS A *SUA SPONTE* NPC
INVESTIGATION INTO THE
POSSIBLE DATA PRIVACY
VIOLATIONS COMMITTED BY
WEFUND LENDING CORPORATION
(JUANHAND)

*For: Violation of Data
Privacy Act of 2012*

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ORDER

This refers to the Comment submitted by Wefund Lending Corporation. (JuanHand) in response to the Order dated 12 August 2021.

On 12 August 2021, the Commission issued an Order requiring JuanHand and its responsible officers to comply with the following:

WHEREFORE, all these premises considered, this Commission **GRANTS** the Application for Temporary Ban on the processing of personal data filed by the Complaints and Investigation Division (CID) of the National Privacy Commission. A **TEMPORARY BAN ON PROCESSING OF PERSONAL DATA** is hereby issued against Respondent Wefund Lending Corporation, as the operator of the online lending application, JuanHand.

Further, pursuant to the **TEMPORARY BAN**, Respondent Wefund Lending Corporation shall:

1. Immediately take down its online lending application, JuanHand, to ensure that it is no longer available for download, installation or use by data subjects; and

NPC_OPC_ADJU_ORD-V2.0,R0.0, 05 August 2021

2. Stop personal data processing activities, including those activities outsourced to third parties, where the processing operations involves use of information from the phonebook, directory, and contact list of data subjects, disclosure of false or unwarranted information, and other unduly intrusive personal data processing methods.

The **TEMPORARY BAN ON PROCESSING OF PERSONAL DATA** shall remain in effect until the final resolution of the *sua sponte* investigation against Respondent and its responsible officers.

Let copies of this Order be furnished to the National Telecommunications Commission for their appropriate action, and Google LLC, which operates the Google Play Store for its compliance in accordance with the terms and conditions of its platform.

Furthermore, Respondent Wefund Lending Corporation and its responsible officers are **ORDERED, within ten (10) days** from receipt of this Order, to file a **COMMENT** on the allegations in the attached Fact-Finding Report, pursuant to Section 6 of Rule X of NPC Circular No. 2021-01 (2021 NPC Rules of Procedure).

In case of failure by the Respondent and its responsible officers to file a Comment, this case shall be deemed submitted for resolution based on the evidence on record.

The proceedings before the Commission based on the Fact-Finding Report of the CID, which serves as the Complaint against Respondent Wefund Lending Corporation and its responsible officers, will now resume, pursuant to Section 2, Rule IX of the 2021 NPC Rules of Procedure.

SO ORDERED.¹

On 2 September 2021, JuanHand filed with the Commission a Comment to the Order and Temporary Ban dated 12 August 2021 (Comment) with the following annexes:

1. Annex 1: a copy of the 'JuanHand Privacy Policy' with version date August 2021;

¹ Order, 12 August 2021, *in* In re: Wefund Lending Corporation, at 17.

2. Annex 2: a copy of the “Service Agreement” with version date August 2021;
3. Annex 3: a copy of the “Wefund Lending Corporation Personal Privacy Information Management Policy”; and
4. Annex 4: a copy of the “Wefund Lending Corporation Information Security Emergency Response Management Directive”.²

The Commission notes that the Comment and the enumerated documents submitted by JuanHand pertain to the issuance of the Temporary Ban. The Order dated 12 August 2021, however, required JuanHand and its responsible officers to comment on the Fact-Finding Report dated 09 June 2021 pursuant to NPC Circular No. 2021-01 (2021 NPC Rules of Procedure). Section 6, Rule X provides:

SECTION 6. *Order to Comment.* - Upon receipt by the Commission of the Fact-Finding Report, the respondent identified after the conduct of the preceding investigation shall be provided a copy of the Fact-Finding Report and given an opportunity to submit a comment. In cases where the respondent or respondents fail without justification to submit an comment or appear before the NPC when so ordered, the Commission shall render its decision on the basis of available information under Rule VIII of these Rules.³

Nevertheless, in the interest of fully affording the parties an opportunity to be heard, the Commission reiterates its order for JuanHand and its responsible officers to comment on the Fact-Finding Report. Should JuanHand and its responsible officers fail to comment on the Fact-Finding Report, the Commission shall render its decision on the main case based on the evidence available on record.

WHEREFORE, premises considered, the Commission **NOTES** the submission of the Comment on the Order and Temporary Ban dated 12 August 2021 and its Annexes. Wefund Lending Corporation and

² Comment to the Order and Temporary Ban dated 01 September 2021 *by* Wefund Lending Corporation,

³ National Privacy Commission, NPC Circular No. 21-01, “2021 Rules of Procedure of the National Privacy Commission” [NPC Circ. No. 2021-01], Rule X, § 6 (28 January 2021).

its responsible officers are **ORDERED within a non-extendible period of ten (10) days from receipt of this Order to COMMENT** on the Fact-Finding Report dated 09 June 2021, pursuant to Section 6 of Rule X of NPC Circular No. 2021-01 (2021 NPC Rules of Procedure).

SO ORDERED.

City of Pasay, Philippines.
17 September 2021.

Sgd.
LEANDRO ANGELO Y. AGUIRRE
Deputy Privacy Commissioner

WE CONCUR:

Sgd.
RAYMUND ENRIQUEZ LIBORO
Privacy Commissioner

Sgd.
JOHN HENRY D. NAGA
Deputy Privacy Commissioner

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WEFUND LENDING CORPORATION

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COMPLAINTS AND INVESTIGATION DIVISION
ENFORCEMENT DIVISION
GENERAL RECORDS UNIT
National Privacy Commission